

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Spencer Migotsky	Team: Squad #01	CCRB Case #: 201600098	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 01/02/2016 8:46 PM	Location of Incident: In front of 119 Marcus Garvey Boulevard	18 Mo. SOL 7/2/2017	Precinct: 81		
Date/Time CV Reported Wed, 01/06/2016 2:36 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 01/06/2016 2:36 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Jasleen Khurana	20318	955006	081 PCT
2. POF Kathryn Ellison	30427	954767	081 PCT
3. POF Kerine Smith	26369	955514	081 PCT
4. POM Chintua Alozie	00148	926497	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Douglas Connolly	10261	954665	081 PCT
2. POM William Gunderson	18154	954901	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Kathryn Ellison	Abuse: PO Kathryn Ellison refused to provide her name and shield number to § 87(2)(b)	A . Substantiated
B . POF Kerine Smith	Abuse: PO Kerine Smith refused to provide her name and shield number to § 87(2)(b)	B . Substantiated
C . POM Chintua Alozie	Abuse: PO Chintua Alozie refused to provide his name and shield number to § 87(2)(b)	C . Unsubstantiated
D . POF Jasleen Khurana	Abuse: PO Jasleen Khurana refused to provide her shield number to § 87(2)(b)	D . Unfounded

Case Summary

On January 2, 2016 at approximately 8:46 pm, § 87(2)(b) and his friend, § 87(2)(b) recording officers at a checkpoint in front of 119 Marcus Garvey Boulevard in Brooklyn. § 87(2)(b) asked PO Douglas Connolly, PO Kathryn Ellison, PO Kerine Smith, PO Chintua Alozie, PO Jasleen Khurana, and PO William Gunderson of the 81st Precinct for their names and shield numbers. While PO Connolly and PO Gunderson provided their names and shield numbers, § 87(2)(b) alleged that PO Ellison, PO Smith, and PO Alozie provided neither and PO Khurana did not provide her shield number (**Allegations A, B, C, and D**).

There is cell phone video footage of this incident recorded by § 87(2)(b)

Mediation, Civil and Criminal Histories

On January 7, 2016, during a phone call to § 87(2)(b) he rejected mediation. On January 12, 2016, mediation was reoffered to § 87(2)(b) during his interview; however, he rejected it again (Board Review 01). § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)] A notice of claim was returned with negative results.

Civilian and Officer CCRB Histories

- This is the second complaint involving § 87(2)(b) § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- PO Ellison has been a member of the NYPD for two years. No prior complaints have been filed against her.
- PO Smith has been a member of the NYPD for two years. No prior complaints have been filed against her.
- PO Alozie has been a member of the NYPD for 15 years. Three complaints involving four allegations have been filed against him, one of which (case 200611063) was substantiated. The allegation was a discourtesy. § 87(2)(g)
§ 87(2)(g)
- PO Khurana has been a member of the NYPD for two years. No prior complaints have been filed against her.

Potential Issues

§ 87(2)(b) stated that his friend § 87(2)(b) recorded the incident; however, he did not know § 87(2)(b) last name, address, phone number, email, or any other information about him (Board Review 01). As a result, he could not be reached to testify or provide video footage of this incident.

Findings and Recommendations

Explanation of Officer Identification

PO Ellison, PO Smith, PO Alozie, and PO Khurana visually identified themselves, upon viewing videos recorded by § 87(2)(b) as officers who he appeared to ask for names and shield numbers,

§ 87(2)(g)

Recommendations
Allegations Not Pleaded

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Allegation A: Abuse of Authority – PO Kathryn Ellison refused to provide her name and shield number to § 87(2)(b)

§ 87(2)(b) stated that he encountered PO Ellison when he approached a police vehicle to record its license plate number. He asked her for her name and shield number and she told him “it’s right here” pointing to her shield while standing in the middle of the Marcus Garvey Boulevard approximately 20-25 feet away from him. § 87(2)(b) did not want to approach PO Ellison because he was afraid of being harassed for jaywalking. He asked PO Ellison to tell him her name and shield number again, but she said that she did not have to tell it to him. § 87(2)(b) replied that she was required to tell it to him according to the Patrol Guide. PO Ellison never provided her name and shield number (Board Review 01).

PO Ellison stated that she was tasked with directing vehicles which were exiting the checkpoint back into the regular flow of traffic. § 87(2)(b) asked several officers for their names and shield numbers and, although she did not know whether § 87(2)(b) was speaking to her, PO Ellison pointed to her shield and said “it’s right here” from approximately two car lengths away. The passing traffic would have prevented § 87(2)(b) from approaching her to look at her shield and she did not recall whether she verbally provided or refused to provide her name and shield number. She did not know whether § 87(2)(b) or his friend complained that they could not obtain her name and shield number. PO Ellison was shown video 9 during her interview. She maintained that that she could not approach § 87(2)(b) or otherwise provide her name and shield number to him because she was directing traffic. She stated that she did not have any interaction with § 87(2)(b) besides the interaction captured on video. (Board Review 03).

Video 9 recorded by § 87(2)(b) shows PO Ellison standing in the middle of the street saying “you can look it’s right there” while nodding her head to her shield. § 87(2)(b) tells her “no you have to tell it to me” and PO Ellison responds “I don’t have to tell it to you.” § 87(2)(b) replies that she does have to tell it to her and PO Ellison waves for a car to proceed past her. § 87(2)(b) says “are you sure you don’t want to tell it to me?” and PO Ellison does not answer. § 87(2)(b) then says “you just got a complaint...doesn’t know her fucking patrol guide” (Board Review 08).



Video9.mp4

§ 87(2)(b) initial request for PO Ellison’s name and shield number was not captured on video and PO Ellison stated that she did not know whether he asked her specifically for her name and shield number given that there were other officers in the vicinity. § 87(2)(g)

§ 87(2)(b)

Patrol Guide Procedure 203-09 states that officers must “courteously and clearly state [their] rank, name, shield number, and command...to anyone who requests [them] to do so” (Board Review 09).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **substantiated**.

Allegation B: Abuse of Authority – PO Kerine Smith refused to provide her name and shield number to § 87(2)(b)

§ 87(2)(b) said that he heard PO Smith say “I’m tired of this” in reference to § 87(2)(b) and § 87(2)(b) said “what did you say” and recorded PO Smith with his phone. He asked PO Smith at least twice what her name and shield number was within 10 feet of her and PO Smith walked away in complete silence. § 87(2)(b) told her that he intended to file a complaint against her (Board Review 01).

PO Smith stated that while she saw two individuals at the checkpoint, she did not pay attention or interact with them in any way. She did not say anything to them and she did not recall § 87(2)(b) asking for her name and shield number. When PO Smith was shown video footage from the incident, she said that it refreshed her recollection of § 87(2)(b) asking for her name and shield number. She stated that she never provided her name and shield number to § 87(2)(b) because she was focusing on her job, which was to obtain IDs from drivers and check to see if there were open warrants attached to them or whether the licenses were suspended. There was no other reason she did not provide her name and shield number. When PO Smith was shown video 10 during her interview, she continued to say that she did not provide her name and shield number because she was focused on her job (Board Review 04).

Video 10 recorded by § 87(2)(b) shows PO Smith wordlessly walking past § 87(2)(b) as he asks for her name and shield number twice from about 10 feet away. He walks along with her and also tells her to smile for the camera. No other officers appear in the vicinity. PO Smith opens the door to a marked NYPD van and enters as § 87(2)(b) says “I got two complaints already.” PO Smith was not interacting with any civilians, asking for ID, checking for warrants, or stopping vehicles (Board Review 10).



§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation B** be closed as **substantiated**.

Allegation C: Abuse of Authority – PO Chintua Alozie refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) stated that he saw PO Alozie talking to another officer saying that § 87(2)(b) and his friend were trying to antagonize them and that they should ignore § 87(2)(b) and his friend. § 87(2)(b) said “what was that?” to PO Alozie and PO Alozie made eye contact with § 87(2)(b) and walked away. § 87(2)(b) started to record and said “officer, on the left, what’s your name and badge number” because PO Alozie was standing about 20 feet away in the middle of the street to the left of § 87(2)(b) with his back turned to him. PO Alozie completely ignored § 87(2)(b) when he asked him for his name and shield number (Board Review 01).

PO Alozie stated that there were two individuals recording the checkpoint but neither of them interacted with him. PO Alozie heard the individuals ask for someone’s name and shield number but he did not know who they asked. He did not recall whether any officer replied to them. § 87(2)(b) never asked PO Alozie for his name and shield number and he never provided his name and shield number to them. When PO Alozie was shown video 11, he identified himself as the officer standing to the left of another officer by a traffic cone. He stated that he heard § 87(2)(b) say “officer, the one on the left” but he did not believe that § 87(2)(b) was addressing him. PO Alozie never turned to face § 87(2)(b) and did not have any interaction with him or his friend before or after the events captured in video 11. No one complained that they were unable to obtain PO Alozie’s identifying information (Board Review 05).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)

it is recommended that
Allegation C be closed as **unsubstantiated**.



§ Video11(Part1).mp4

Allegation D: Abuse of Authority – PO Jasleen Khurana refused to provide her shield number to § 87(2)(b)

§ 87(2)(b) stated that he turned to PO Khurana, who was standing near the sidewalk, after attempting to get PO Alozie’s attention. § 87(2)(b) asked her for her name and badge number from about 5 feet away while recording with his phone and PO Khurana said “it’s right here” indicating her shield. § 87(2)(b) said it did not matter that her name was on her shield and that she had to tell him her name verbally. PO Khurana replied “Khurana.” § 87(2)(b) said “and...” referring to her shield number and PO Khurana said “it’s right here.” § 87(2)(b) then asked for her precinct and she said she was from the 81st Precinct. § 87(2)(b) never obtained PO Khurana’s shield number (Board Review 01).

PO Khurana stated that § 87(2)(b) and his friend recorded officers at the checkpoint and approached within a couple feet of her. § 87(2)(b) asked PO Khurana for her name and shield number and she provided her name and shield number to him. When she was shown video 11, PO Khurana clarified that she provided her shield number by gesturing to her shield. She believed that her shield was captured by the video and did not see § 87(2)(b) write anything down. When § 87(2)(b) said “and...” to her, PO Khurana told him that she worked for the 81st Precinct. § 87(2)(b) never told her that he was ever unable to read her shield number (Board Review 06).

In video 11, § 87(2)(b) asks PO Khurana from less than five feet away for her name and shield number and she replies “Khurana, right there” gesturing to her shield. § 87(2)(b) says “Khurana...and...?” PO Khurana says “and...” § 87(2)(b) says “do I have to tell you, when I ask you stuff, what’s your precinct?” PO Khurana replies “my badge number’s right here” and § 87(2)(b) asks “what’s your precinct?” PO Khurana says “it’s 81” and § 87(2)(b) replies “it doesn’t matter what it is, you have to tell me.” PO Khurana says “81” and § 87(2)(b) replies “okay, thank you, Khurana” (Board Review 11).



§ Video11(Part2).mp4

§ 87(2)(g)

As a result, it is recommended that **Allegation D** be closed as **unfounded**.

Squad: 1

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date